



Z. SANWARWALA & COMPANY

Advocates

Registered Office: Ashoka House, 3A Hare Street 5th Floor Kolkata 700 001.
Corporate Office: 14, Hare Street, 1ST & 2nd Floor, Room No. 2 & A, Kolkata 700 001.
Branches: Mumbai-Chennai-Bengaluru-Bhopal-Jaipur-Ahmedabad

SR-98

To,

DATED: 23-09-26

1. Munusamy Saraswathi Mudaliyar

345/1 NEAR MUTHU MARIYAMMAN TEMPLE D.R.COLONY ,KEELVANI, ANTHIYUR Erode TAMIL NADU - 638502



2. PaavaayammalMunusamy

345/1NEAR MUTHU MARIYAMMAN TEMPLED.R.COLONY ,KEELVANI, ANTHIYUR 638502



3. SRI MUTHUMARIYAMMAN MESS

158, MOONGILPATTI BUS STOPOPP TEMPLEKEELVANI ,ANTHIYUR 638502



4. MUNUSAMYSUGANYA

345/1NEAR MUTHU MARIYAMMAN TEMPLED.R.COLONY ,KEELVANI, ANTHIYUR 638502



ALSO AT

6NEAR POST OFFICEKAMACHIYAMMAN KOVIL ST,MOONGILPATTY,KEEL 638502



5. GowthamiMunusamy

345/1NEAR MUTHU MARIYAMMAN TEMPLED.R.COLONY ,KEELVANI, ANTHIYUR 638502



Subject: - Notice under Section 138 of the Negotiable Instruments Act in respect of your Loan A/C No. ML01OB100000032772

Under the instructions and authority of my client **CHOLAMANDLAM INVESTMENT AND FINANCE COMPANY** having its office at 55/55/1, Chowringhee Road, Kolkata-700 071 and having its Registered office at Chola Crest, Super B, C54 & C55, 4, Thiru Vi Ka Industrial Estate, Guindy, Chennai – 600 032, I hereby serve upon you all, the following legal notice and request you all to make the necessary amends within a period of 15 days from the receipt of this notice. In case of your failure to do so, appropriate legal proceedings will be taken out against you all and in that event, you all will be held liable for all the expenses and costs of litigation.

1. That my aforementioned client is a Non-banking Finance Company, having its branch office at 55/55/1, Chowringhee Road, Kolkata-700 071, is inter alia involved in the business of providing all loan facilities to customers.
2. That you the above named addressees, availed a loan/finance facility from my client (as borrower/ co-borrower/ guarantor) vide



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loan account no. ML01OBI00000032772. As per the stipulated terms and conditions envisaged in the Loan Agreement, you all are bound to repay the loan/finance facility, on time, as per the schedule of payment, as agreed between you and my client.

3. In furtherance of the terms envisaged in the said agreement, you the above mentioned addressees in discharge of your legal loan liability as aforementioned, you issued, inter alia, a **cheque bearing no. 042424, dated- 07-09-26** for a sum of **Rs. 764000** drawn on **INDIAN BANK** in favour of my client.
4. That the above mentioned cheque on due presentation through my client to your bankers for realization was returned unpaid by your bankers. Intimation of such dishonor was received subsequently by my client through its bankers vide cheque returning memo dated **15-09-26** with the endorsement "**F009-INSUFFICIENT FUNDS**".
5. That your action in allowing the cheque to return unpaid on presentation goes to show that you had intentionally, malafidely with a criminal intention and in order to defraud my client, issued the cheque, knowing fully well that the said cheque will not be honoured on presentation and never made any attempt to facilitate the encashment of the same.
6. That, I bring to your notice that the cheque issued in payment of debt, if returned unpaid and after receiving notice under Section 138 of N.I. Act, within **15 days** of the receipt of the notice, if the entire payment is not made to my client, you will be deemed to have committed a criminal offence punishable under section 138 read with section 142 of the Negotiable Instruments Act, 1881 as amended up to date which prescribes, on conviction "a jail term up to Two years and/or fine up to double the amount of the cheque so returned, or with both."
7. That in view of the aforesaid, I, on behalf of my client, do hereby call upon you and demand you to pay to my client the aforesaid amount of **Rs. 764000** being the amount of the said dishonoured cheque by pay-order or bank draft within 15 days of receipt of this notice, failing which, my client will be constrained to institute legal proceedings against you under the provisions of Section 138 of the N.I. Act read with Section 142 of N. I. Act and on your failure to comply with the aforesaid, proceedings under the provisions of the N.I. Act shall be initiated against you all without any further notice to you.

COPY RETAINED IN THE OFFICE

Thanking you,
Yours sincerely,

KAMALIKA MAJHI

Authorised Signatory

Advocate

(For Z. Sanwarwala & Co.)

Advocate

C.C TO Cholamandalam Investment & Finance Co Ltd